

26STCV02344 26STCV02344

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Case Number: 26STCV02344 Hearing Date: August 27, 2026 Dept: 529

IDA PETTAWAY VS WILLOW TREE APARTMENTS, ET AL.

DEMURRER

WITH MOTION TO STRIKE THE COMPLAINT

Date

of Hearing: August 27, 2026 Trial Date: None

set

Department: 529 Case No.: 26STCV02344

Moving

Party: Defendants Willow Tree

Apartments, The People Concern, Karen Hidalgo, Zenda Handy and Charlene Tolbert

Responding

Party: Plaintiff Ida Pettaway

Meet

and Confer: Yes.

BACKGROUND

On January 23, 2026, Plaintiff Ida

Pettaway filed a complaint against Defendants Willow Tree Apartments, The

People Concern, Karen Hidalgo, Zanda Handy, and Charlene Tolbert for various

causes of action including breach of

contract, breach of the implied warranty of habitability, breach of the

covenant of quiet enjoyment, violations of the Drug Abatement Act and Health & Safety Code § 11366, private and public nuisance, negligence, retaliation under Civil Code § 1942.5, and unfair business practices under Business & Professions Code § 17200 along with exemplary damages. On February 11, 2026, Plaintiff filed an Amendment to Complaint, correcting Defendant's name to Karen Hildago. On February 20, 2026, Plaintiff filed an Amendment to Complaint, correcting Defendant's name to Zenda Haney.

Plaintiff Pettaway alleges she was a tenant and entered into a lease agreement with Defendants Willow Tree Apartments and The People Concern. Plaintiff alleges that beginning in August 2025, rampant drug use, drug sales and drug trafficking in Unit 213 (the unit above Plaintiff's unit), along with violence, burglary, and mail seizure rendered the premises uninhabitable.

[TENTATIVE]

RULING

Defendants Willow Tree Apartments, The People Concern, Karen Hildalgo, Zanda Handy, and Charlene Tolbert's Demurrer to the Complaint is SUSTAINED, IN PART. Defendants' Motion to Strike is GRANTED IN PART.

DISCUSSION

Defendants Willow Tree Apartments, The People Concern, Karen Hildalgo, Zanda Handy, and Charlene Tolbert demur to the complaint of Plaintiff Ida Pettaway on the grounds that the court lacks jurisdiction defect and misjoinder of parties, failure to state a cause of action, and uncertainty.

A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.) "To survive a demurrer, the complaint need only allege facts sufficient to state a cause of action; each evidentiary fact that might eventually form part of the plaintiff's proof need not be alleged." (C.A. v. William S. Hart Union High School Dist. (2012) 53 Cal.4th 861, 872.) For the purpose of testing the sufficiency of the cause of action, the demurrer admits the truth of all material facts properly pleaded. (Aubry

v. Tri-City Hospital Dist. (1992) 2 Cal.4th 962, 966-967.) A demurrer “does not admit contentions, deductions or conclusions of fact or law.” (Daar v. Yellow Cab Co. (1967) 67 Cal.2d 695, 713.)²

Defendants argue each cause of action is independently defective and not curable. The court notes Plaintiff filed a limited opposition arguing she was improperly served as she never consented to electronic service as required under Code of Civil Procedure section 1010.6 and no physical copy was ever delivered or mailed to Plaintiff. The court agrees self-represented parties must affirmatively consent before they can be electronically served. However, counsel for Defendants, Mr. Arzoo, testifies under penalty of perjury that on July 18, 2026, Defendants sent Plaintiff physical copies of the papers. Because Plaintiff was served physical copies well before the opposition was due, the court will consider the merits of the demurrer.

First (Breach of Contract), Second (Breach of the Implied Warranty of Habitability), and Third (Breach of Quiet Enjoyment) Causes of Action

Defendants demur to the first, second and third causes of action on the grounds the lease attached to the Complaint as Exhibit A identifies a single contracting lessor, The People Concern, and as a result, the individual Defendants and Willow Tree Apartments are improperly joined on the contract-based claims.

One must be a party to a contract to be bound by it or to invoke it. (See *Berclain America Latina v. Baan Co.* (1999) 74 Cal.App.4th 401, 405.) As noted by Defendants, the lease attached as Exhibit A to the complaint identifies only The People Concern as lessor. Because the Exhibit does not provide the other named Defendants nor does the complaint allege those Defendants are third party beneficiaries, the court finds Plaintiff has not sufficiently alleged a claim against the individual Defendants and Willow Tree Apartments.

Based on the foregoing, the demurrer to the first, second and third causes of action is SUSTAINED WITH LEAVE TO AMEND. Plaintiff is given the opportunity to allege non-conclusory facts showing either ownership, agency, alter ego or other basis for contractual liability.

First Cause of Action

Defendants also demur to the first cause of action for breach of contract on the grounds Plaintiff does not adequately plead her own performance.

“The standard elements of a claim for breach of contract are: ‘(1) the contract, (2) plaintiff’s performance excuse for nonperformance, (3) defendant’s breach, and (4) damage to plaintiff therefrom.’” (Wall Street Network, Ltd. v. New York Times Co. (2008) 164 Cal.App.4th 1171, 1178.)

Defendants argue Plaintiff has not adequately plead her own performance as required as the complaint affirmatively alleges that Plaintiff stopped paying rent and that “no rent was owed” for “each month starting with August 2025.” (Compl., ¶ 88.) Defendants also contend to the extent the First Cause of Action also pleads breach of the implied covenant of good faith and fair dealing, that theory adds nothing.

The court agrees Plaintiff has not sufficiently alleged performance or excuse for nonperformance. While a tenant’s nonperformance of the rent obligation may be legally excused under contractor principles, the complaint does not allege sufficient facts to show excuse of nonperformance. The court notes habitability issues do not eliminate the entire rent obligation but rather, reduce the rent to the reasonable rental value of the premises in their defective condition. (See *Green v. Superior Court* (1974) 10 Cal.3d 616, 635 holding that the tenant’s duty to pay rent and the landlord’s warranty of habitability are “mutually dependent” covenants, meaning a landlord’s breach directly affects whether rent is “due and owing”.) As a result, Plaintiff has not sufficiently alleged excuse for performance. The court also notes if Plaintiff is alleging breach of implied of the covenant of good faith and fair dealing, Plaintiff has not alleged facts sufficient to support a claim.

Based on the foregoing, the demurrer to the first cause of action is SUSTAINED WITH LEAVE TO AMEND.

Second Cause of Action

Defendants also demur to the second cause of action on the grounds it targets third-party conduct rather than a defective condition of the lease premises.

The elements for a breach of the implied warranty of habitability

cause of action are: (1) the existence of a material defective condition affecting the premises' habitability; (2) notice to the landlord of the condition within a reasonable time after the tenant's discovery of the condition; (3) the landlord was given a reasonable time to correct the deficiency; and (4) resulting damages. (*Erlach v. Sierra Asset Servicing, LLC* (2014) 226 Cal.App.4th 1281, 1297.)

Defendants argue the warranty concerns the physical condition of the dwelling itself, the statutory characteristics of tenantability such as plumbing, heating, weatherproofing, and sanitary common areas. Accordingly, Plaintiff's claims of criminal conduct, noise, and smoke generated by the occupants of Unit 213 are not defective conditions affecting the premises' habitability.

The court agrees these are not grounds for breach of implied warranty of habitability. "[The] implied warranty of habitability does not require that a landlord ensure that leased premises are in perfect, aesthetically pleasing condition, but it does mean that 'bare living requirements' must be maintained." (*Penner v. Falk* (1984) 153 Cal.App.3d 858, 868.) The criminal conduct of neighbors, noise or smoke generated by other tenants is not enough to show that the living quarters were not in a habitable state.

Based on the foregoing, the demurrer to the second cause of action is SUSTAINED WITH LEAVE TO AMEND.

Third Cause of Action

Defendants also demur to the third cause of action on the grounds the cause of action does not allege a substantial interference by the landlord and is duplicative.

"[E]very lease includes a covenant of quiet possession and enjoyment." (*Erlach v. Sierra Asset Servicing, LLC* (2014) 226 Cal.App.4th 1281, 1299 (citing Civ. Code, § 1927).) "Minor inconveniences and annoyances are not actionable breaches of the implied covenant of quiet enjoyment." (*Andrews v. Mobile Aire Estates* (2005) 125 Cal.App.4th 578, 589.) "To be actionable, the [landlord's] act or omission must substantially interfere with a [tenant's] right to use and enjoy the premises for the purposes contemplated by the tenancy." (*Id.*)

Defendants argue the cause of action fails to plead the contractor lessor committed any act or omission, that Plaintiff gave the lessor notice of the Unit 213 conduct, or that the lessor had the ability to abate it. Instead, the complaint alleges the interference to all "Defendants" collectively without distinguishing the lessor's conduct from that of the neighbors.

The court finds the complaint does sufficiently allege a claim for quiet enjoyment for the purposes of a demurrer. Another tenant's criminal conduct, noise and smoke could substantially interfere with a tenant's right to use and enjoyment of the premises. The complaint alleges as a result of the tenants' conduct in Unit 213, Plaintiff could not sleep, there were no quiet hours, and she suffered emotional and mental distress as a result. The complaint also alleges Defendants were on notice of the alleged substantial interference. (Compl. ¶¶11-12, 14-16.)

However, as noted above, Plaintiff has not sufficiently alleged the defendants, with the exception of The People Concern, are parties to the agreement or in a landlord-tenant relationship with Plaintiff.

Based on the foregoing, the demurrer to the third cause of action is SUSTAINED WITH LEAVE TO AMEND.

Fourth Cause of Action

Defendants demur to the fourth cause of action for violation of the Drug Abatement Act on the grounds the complaint is unverified and does not plea the statutory elements.

A private plaintiff may bring suit under the Drug Abatement Act, Health & Safety Code § 11571 et seq. The Act authorizes suit by any citizen of the state resident in the county. However, unless an action is filed by a designated public prosecutor, the complaint must be verified under Health & Safety Code section 11572.

Defendants argue the complaint is unverified and beyond the verification defect, the cause of action pleads no facts establishing the statutory nuisance as to these Defendants.

The court agrees the complaint is unverified and on that basis

alone, the court can sustain the demurrer. The court also notes while the complaint does not allege the landlord or other entity defendants conducted or maintained the nuisance, the complaint does sufficiently allege the at least permitted the nuisance within the meaning of the statute. (See *People v. Freetown Holdings Co.* (2024) 100 Cal.App.5th 1195, 1210 noting the three-element test for drug house cases involving third parties, drawn from *Lew v. Superior Court* (1993) 20 Cal.App.4th 866: (1) third parties used the defendant's property for sales of illegal drugs; (2) the defendant knew or should have known it; and (3) the defendant failed to do what a reasonable person under similar circumstances would have done.)

Based on the foregoing, the demurrer to the fourth cause of action is SUSTAINED WITH LEAVE TO AMEND.

Fifth Cause of Action

Defendants demur to the fifth cause of action on the grounds the statute is penal and creates no private right of action.

Health and Safety Code section 11366 is a criminal statute: every person who opens or maintains a place for unlawful controlled-substance activity "shall be punished by imprisonment." (Health & Saf. Code, § 11366.) Accordingly, the court agrees Plaintiff cannot maintain a claim for violation of Health and Safety Code section 11366.

Based on the foregoing, the demurrer to the fifth cause of action is SUSTAINED WITHOUT LEAVE TO AMEND.

Sixth Cause of Action

Defendants demur to the sixth cause of action for private nuisance on the grounds it pleads only third-party conduct and lumps all Defendants together.

"The essence of a private nuisance is an interference with the use and enjoyment of land." (*Friends of H Street v. City of Sacramento* (1993) 20 Cal.App.4th 152, 160.) Thus to allege a cause of action for private nuisance, the plaintiff must allege injury specific to the use and enjoyment of his land. (See *Adams v. MHC Colony Park Limited Partnership* (2014) 224 Cal.App.4th 601, 610.)

Defendants argue the sixth cause of action again attributes the claimed interference to the Unit 213 occupants and pleads no act of these Defendants creating a nuisance, instead alleging only that "Defendants" failed to abate conduct of third parties. Defendants contend the complaint fails to allege a substantial and unreasonable interference attributable to any identified Defendant, is uncertain as to which Defendant is responsible, and is defective as to the non-owner Defendants.

The court finds the allegations sufficient for the purposes of a demurrer. California Civil Code section 3479 specifically includes "the illegal sale of controlled substances" as conduct that can constitute a nuisance when it interferes with the comfortable enjoyment of life or property. Here, the complaint alleges the people from Unit 213 created an atmosphere where the drug dealing interfered with Plaintiff's use and enjoyment of the property and that the invasion was substantial. Similarly, the complaint alleges that the Landlord failed to abate the nuisance. (See *Lew v. Superior Court* (1993) 20 Cal.App.4th 866 finding the owner allowing the rental property to become a haven for drug dealing subjected the owner to a claim for nuisance.)

Based on the foregoing, the demurrer to the sixth cause of action is OVERRULED.

Seventh Cause of Action

Defendants demur to the seventh cause of action for violation of Civil Code section 731 because it miscites a nonexistent statute, is duplicative and pleads no special injury.

Civil Code section 731 is the opening provision of Chapter 2.6 – Legal Estates Principal and Income Law, which governs how principal and income are defined, allocated, and administered when a principal is established without a trust. It appears Plaintiff may have been attempting to cite Code of Civil Procedure section 731, which allows individuals or government officials to bring civil actions to abate or recover damages for nuisances affecting property or public welfare.

Based on the foregoing, the demurrer to the seventh cause of action is SUSTAINED WITH LEAVE TO AMEND.

Eighth Cause of Action

Defendant demurs to the eighth cause of action for negligence on the grounds a landlord has no duty to prevent the criminal acts of third-party tenants absent heightened foreseeability and negligence per se is not a cause of action.

“A landlord generally owes a tenant the duty, arising out of their special relationship, to take reasonable measures to secure areas under the landlord’s control against foreseeable criminal acts of third parties.” (Castaneda v. Olsher (2007) 41 Cal.4th 1205, 1213.) “[C]ourts have been reluctant to find a duty on the part of landlords or occupiers of land or premises to warn of or otherwise protect tenants or customers from dangers arising or existing on land, such as streets, parking lots, etc., over which the landlords or occupiers of the adjacent property have no right of possession, management or control.” (Brooks v. Eugene Burger Management Corp. (1989) 215 Cal.App.3d 1611, 1624.)

Defendants argue a landlord “is not obliged to institute eviction proceedings whenever a tenant accuses another tenant of harassment,” and the imposition of burdensome duties to protect against third-party crime requires a heightened showing of foreseeability, prior similar incidents or other indications of a reasonably foreseeable risk of violent assault. (See Castaneda v. Olsher (2007) 41 Cal.4th 1205, 1213–1214; Delgado v. Trax Bar & Grill (2005) 36 Cal.4th 224, 235.) Moreover, negligence per se is “an evidentiary presumption rather than an independent right of action”; it does not create a separate cause of action.

The court agrees the complaint fails to allege a claim for negligence and/or negligence per se. As noted by the court in Rosenbaum v. Security Pacific Corp., “previous cases have made clear, the duty of a landlord to protect the tenant from criminal activity is not a general one but arises only where the landlord’s negligence facilitates the criminal act. [Citation.] The landlord is not the ‘insurer of his tenant’s safety.’ [Citation.] Rather, the landlord’s duty to provide adequate lighting in common areas arises because failure to do so may facilitate a criminal attack on the tenant in the common areas or the tenant’s apartment. [Citation.] In other words, a duty is imposed on the landlord where there is a close, or functional, connection between the

landlord's conduct and the harm suffered.”

(Rosenbaum v. Security Pacific Corp. (1996) 43 Cal.App.4th 1084, 1091.) As alleged, the generalized awareness of drug activity, without more particularized facts, does not satisfy the heightened foreseeability threshold necessary to impose a burdensome protective duty on the landlord. Moreover, the doctrine of negligence per se is an evidentiary presumption rather than an independent right of action. As such, the plaintiff may pursue a general negligence claim by proof of negligence per se.

Based on the foregoing, the demurrer to the eighth cause of action is SUSTAINED WITH LEAVE TO AMEND.

Ninth Cause of Action

Defendants demur to the ninth cause of action for retaliation because the complaint admits Plaintiff has not paid rent since August 2025, thus defeating the 'not in default' element.

California Civil Code section 1942.5(a) prohibits a lessor from retaliating against a lessee for certain protected actions, and it sets a 180-day cooling-off period during which the lessor cannot take certain adverse actions.

Defendants argue a tenant in default of rent cannot invoke section 1942.5 and Plaintiff admits in her complaint that she has paid no rent and that “no rent was owed” for “each month starting with August 2025.” (Compl. ¶88.) Moreover, the claim independently fails because the Complaint does not identify any enumerated retaliatory act. Plaintiff alleges only that Defendants “suspended” unspecified “services such as repairs” (Compl. ¶89), without identifying the service, the timing of any request, or facts connecting any act to a retaliatory motive.

The court agrees the complaint fails to allege a claim for retaliation. As noted by Defendants, the tenant must not be in default on rent payments to invoke protection of Civil Code section 1942.5. As noted above, the complaint does not sufficiently allege a legal excuse for completely stopping the payment of rent. Moreover, the alleged retaliatory act is not adequately identified. The complaint does not identify the particular service withheld, when it was withheld, what request preceded it, or facts tying the withholding to protected activity within the 180-day period.

Based on the foregoing, the demurrer to the ninth cause of action is SUSTAINED WITH LEAVE TO AMEND.

Tenth Cause of Action

Defendants demur to the tenth cause of action for unfair business practices on the grounds it fails for lack of standing and is wholly derivative.

California Business and Professions Code section 17200 prohibits “any unlawful, unfair or fraudulent business act or practice.” (Bus. & Prof. Code § 17200; see *Clark v. Superior Court* (2010) 50 Cal.4th 605, 610.) A private party has standing to bring a UCL claim if he or she has suffered injury in fact and has lost money or property as a result of Defendant's unfair competition. (See *Law Offices of Mathew Higbee v. Expungement Assistance Services* (2013) 214 Cal.App.4th 544, 555-56.) “[A]n identifiable trifle [of injury] is enough for standing . . .” (Id. at 561.)

Defendants argue Plaintiff pleads no qualifying economic injury caused by Defendants; she alleges she withheld rent rather than lost money to Defendants, and her conclusory reference to “overpayment of rent” is contradicted by her admission that she paid no rent. Defendants also contend the cause of action is wholly derivative and as a result, fails because the other actions fail.

The court agrees the cause of action fails. The court notes *Campbell v. FPI Management, Inc.* (2024) 98 Cal.App.5th 1151 held that the loss of property rights associated with a tenancy—including the covenant of quiet enjoyment—constitutes injury in fact and lost property sufficient to confer UCL standing. However, the court finds because the earlier causes of action fail, Plaintiff cannot state a UCL claim at this time as the allegations are wholly derivative of the prior claims.

Based on the foregoing, the demurrer to the tenth cause of action is SUSTAINED WITH LEAVE TO AMEND.

Exemplary Damages

Defendants argue the claim for exemplary damages fails because the complaint pleads no facts supporting malice, oppression, or fraud by an officer, director or managing agent.

California Civil Code section 3294 authorizes the recovery of punitive damages in non-contract cases where “the defendant has been guilty of oppression, fraud, or malice” (Civ. Code § 3294(a).) Punitive damages thus require more than the mere commission of a tort. (See *Taylor v. Superior Court* (1979) 24 Cal.3d 890, 894-95.) Specific facts must be pleaded in support of punitive damages. (See *Hillard v. A.H. Robins Co.* (1983) 148 Cal.App.3d 374, 391-92.)

Defendants argue the complaint pleads only the conclusory labels that Defendants’ conduct was “oppressive, racist and malicious” and “willful.” Moreover, it pleads no facts identifying any officer, director, or managing agent, much less facts showing that such a person had advance knowledge of, authorized, or ratified despicable conduct.

The court agrees claim for exemplary damages does not sufficiently allege oppressive, malicious or fraudulent conduct on behalf of the Defendants. Moreover, for the entity defendants, the complaint does not allege any officer, director, or managing agent had knowledge of, authorized or ratified the despicable conduct. Lastly, and importantly, the court finds exemplary damages are incidental to a cause of action and not the basis thereof. In other words, the exemplary damages should be plead in connection with one of the other causes of action. (See *Berry v. Frazier* (2023) 90 Cal.App.5th 1258, 1276.)

Uncertainty

Defendants argue the entire complaint is uncertain because it never identifies which defendant did what. The court agrees. While a demurrer for uncertainty is generally disfavored, the court finds it is ambiguous as to what exact actions are attributed to which Defendants.

Restraining Order

The court notes Defendants demur to the prayer for temporary restraining order and injunction. The court finds this argument better suited under the motion to strike.

Motion to Strike

Defendants move to strike the heading "CLAIM FOR EXEMPLARY DAMAGES" and Paragraph 101 of the Complaint in their entirety; Paragraph 102 of the Complaint in its entirety; Paragraph 103 of the Complaint in its entirety, including the allegation that Defendants' conduct was "oppressive, racist and malicious"; The Prayer for Relief, paragraph C, requesting "punitive and exemplary damages"; The Prayer for Relief, paragraph D, requesting statutory damages of \$2,000 under Civil Code section 1942.5; and The Prayer for Relief, paragraph J, requesting a temporary restraining order and preliminary and permanent injunctions.

As noted above, the court has sustained the claim for exemplary damages. Accordingly, the motion to strike is moot as to the claim and paragraphs 101 – 103. The court does strike Prayer for Relief, Paragraph C. The court notes at this time, the allegations of "oppressive, racist and malicious" do not fall within the irrelevant, false, or improper matter inserted in any pleading.

Similarly, the motion to strike Prayer for Relief, paragraph D is moot as the court has sustained the demurrer to the claim for violation of Civil Code section 1942.5.

As for the prayer for a restraining order and injunction, the court strikes both. The complaint does not sufficiently allege facts to show a prayer for a restraining order or injunction.

Based on the foregoing, the motion to strike is GRANTED IN PART.